Resolution No. 7184

Authorizing Indemnification of PPS Employees Acting in Scope and Course of Employment

Recitals

A. ORS 30.285 and Portland Public Schools Policy 5.50.020-P provide that the District will defend and indemnify its employees against any tort claim arising out of an alleged act or omission that occurred in the performance of their job duties.

B. Except for limited circumstances, that obligation extends to only tort claims.

C. The Board recognizes the need to encourage employees to effectively and efficiently perform their duties and to protect employees in the performance of their duties, including claims that may arise from signing grants, contracts, or other documents approved by the Board.

D. PPS employees regularly make certifications to the federal government on behalf of the District in the performance of their job duties that may subject them to investigation or claims brought by the federal government or individuals acting on behalf of the federal government.

Resolution

1. The PPS Board of Education Policy Committee will engage in a review of Policy 5.50.020-P to assess reasonable defense and indemnification protections may be afforded PPS employees beyond tort claims.

2. Until that review is complete, the District agrees to provide legal counsel to employees who are a defendant or threatened with being made a defendant to any threatened, pending or contemplated civil, administrative or investigative action, suit or proceeding based on an alleged violation of federal law ("Proceeding") by reason of the fact that the person was an employee of the District and performed duties within the scope and course of their employment. The District will also indemnify such employees against all expenses, fines, and damages incurred in such Proceeding provided that the District does not determine, in the District's discretion, that an employee did not act in good faith within the scope of their authority, role, and duties or that the employee did not reasonably believe their actions were lawful, reasonable, and in the best interest of the District.

3. Any employee claiming indemnification must immediately notify the District's Chief Legal Officer of any Proceeding. The Chief Legal Officer, in turn, will notify the Board of any claim for defense and indemnification under this Resolution.